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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code on the protection of personal data, containing provisions for the
adaptation
of the national legal system to Regulation (EU)
2016/679 (Legislative Decree of June 30, 2003, No. 196, as
amended by Legislative Decree of August 10, 2018, No. 101, hereinafter "Code");

HAVING REGARD to the complaints submitted pursuant to Article 77 of
the Regulation by Mr. XX and Mr. XX against
2 Emme.ci Service s.r.l.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The complaints against the company and the investigative activity.
On September 1, 2021, Mr. XX and Mr. XX submitted two complaints to the Authority pursuant to
Article 77 of the Regulation against 2 Emme.ci Service s.r.l. (hereinafter, the Company),
regularized on July 8, 2022, following an invitation to
regularize.

The complaints alleged purported violations of the Regulation, particularly
the use, after the termination of the employment relationship, of company
forms also containing the names of the complainants, the fact that
accounts XX and XX were kept active "for as long as 7 months
after the termination of the employment relationship," as well as "the
failure to deliver certificates of attendance for a basic course held in 2009 related to the operation
of mobile elevating platforms (PLE) conducted by the
complainants at Union Teleo s.r.l. as
employees of Ali-car service s.r.l., now Emme
ci.service s.r.l., and still in possession of
the latter with related processing of personal data of the
former employees."

On March 22, 2023, the Company, following a
request for information dated August 8, 2022, sent
again on March 20, 2023, provided its
response regarding the complaint submitted by Mr. XX and on that occasion stated that:
- the complainant "worked for 2 EMME.CI. as a maintenance worker from March 1, 2005 until May 30,

2020, the date on which his resignation submitted on May 19, 2020 became effective” (see note of March 22, 2023, p. 3);

- “upon termination of the employment relationship, 2 EMME.CI [...], with a notice sent by registered mail on June 8, 2020 [...], contested a series of unfair competition behaviors carried out by the worker to the detriment of the company” (see note cited, p. 3);
- “the dispute concerning the contested violations and the alleged compensation claim was settled by the parties through a settlement report signed on August 6, 2020 [...], before the Territorial Labor Inspectorate of Udine-Pordenone” (see note cited, p. 4);
- “during the conciliation, the parties declared the definitive extinguishment of any pending issues arising during the employment relationship or connected to it, mutually waiving any action and expressly attributing to the settlement report the nature of a general transaction” (see note cited, p. 4);
- “the company 2 EMME.CI no longer processes the personal data of the [complainant]” (see note cited, p. 4);
- “regarding the corporate email account related to the [complainant], it should be noted that it was deleted on December 28, 2020 [...]. The company therefore proceeded with the deletion, providing feedback [...], as soon as it received the relevant request sent by the attorney of [the complainant]” (see note cited, p. 5);
- “the [complainant] was the only person to have access to the corporate account [assigned to the complainant], as access was protected by a password that was always solely in the possession of the worker. Therefore, the employer company never had the opportunity to access the email of the corporate account of the [complainant], neither during the period when he was an employee of the company, nor, even less, in the period following the termination of the employment relationship” (see note cited, p. 5);
- “considering the sudden and unforeseen resignation of the worker, it may have happened that while waiting to receive the new forms strictly prepared without any reference to the former employee, some of the old forms were used after the termination of the employment relationship with the [complainant]” (see note cited, p. 5, 6);
- “when on December 28, 2020, through communication from the attorney of [the complainant], the presence of forms containing the old reference to the complainant was reported to the undersigned defense, the company promptly proceeded to eliminate the remaining old forms” (see note cited, p. 6);
- “the Company 2 EMME.CI does not possess the certificate related to participation in the basic course for the operation of elevating platforms held in 2009 by the [complainant] and requested by

****Claimant to the company through their lawyer****

****only in April 2021**** (see cited note, p. 6);

- ****“the company 2 EMME.CI SERVICE s.r.l. was established on February 2, 2018 [...] the participation in the course referred to by the [claimant] occurred when they were employed by another company, ALI-CAR SERVICE s.r.l.”**** (see cited note, p. 6, 7);
- ****“2 EMME.CI provided the certificate of participation in the course for elevating platforms held in 2018, which constituted an update of the course held in 2009, while the previous version, invalid and unusable, is not available to either the Company or the provider, as the certificate in question has expired, being of four-year duration”**** (see cited note, p. 7);
- ****“the Company would not have been required to retain an expired certificate of a former employee for more than ten years”**** (see cited note, p. 7);
- ****“the company promptly responded to the [claimant]’s request regarding the certificates of participation in training courses, transmitting, on the same day of the request, all the certificates in the possession of 2 EMME.CI”**** (see cited note, p. 7);
- ****“the company 2 EMME.CI, through lawyer [...], had already responded to the access request pursuant to Article 15 of the Regulation concerning all attendance certificates of the [claimant] on August 26 and September 7, 2020”**** (see cited note, p. 8);
- ****“the company 2 EMME.CI SERVICE s.r.l. has always committed to collaborating with the [claimant] to correctly manage the aspects related to the termination of the employment relationship with them, providing prompt responses to the requests made by them”**** (see cited note, p. 8).

On April 3, 2023, the claimant sent their counterarguments.

On May 11, 2023, the Company, following a further request for information on April 14, 2023, stated that:

- ***“the email account [subject of the complaint] does not properly constitute a ‘business account,’ although, for mere clarity of exposition, previous writings referred to the same account in these terms, having been so designated in the complaint submitted by the [claimant] through their [lawyer]”** (see note May 11, 2023, p. 2);
- ***“this email address was not provided, nor created, by 2 EMME.CI, but was rather activated during the employment relationship by the [claimant] themselves, who created the relevant password for registration and access, without communicating it to the company”** (see cited note, p. 2);
- ***“for this reason, the employer has never had access to the email contained therein, as this account was password-protected and available only to the worker, neither during the period when the claimant was employed by the Company, nor, much less, in the period following the termination of the employment relationship”** (see cited note, p. 2);
- ***“the address was not used for the official communications of the Company, which rather used the different addresses XX and [that assigned to the managing partner], as also evidenced by the company bulletins that reported these email accounts, without making any reference to the account [subject of the complaint]”** (see cited note, p. 2);
- ***“the former employee, just as they activated the account in question, could have deleted it at any time”** (see cited note, p. 2, 3);
- ***“during the period between the termination of the employment relationship and the conciliation that took place before the Territorial Labor Inspectorate of Udine-Pordenone, that is, from May 20, 2020, until August 6, 2020, the parties were in contact through their respective legal representatives, in order to reach an agreement to settle any disputes and/or pending issues that arose during the employment relationship and [...] during the aforementioned period, no request was made to 2 EMME.CI regarding the deletion of the aforementioned account”** (see cited note, p. 3);
- ***“the request actually arrived only after the signing of the conciliatory agreement, and 2 EMME.CI promptly responded to it”** (see cited note, p. 3);
- ***“the company bulletins containing the reference to the surname of the [claimant] were not prepared after the termination of their employment relationship with the Company, but were ordered and delivered to the Company by the supplier when the [claimant] was still employed by 2 EMME.CI.”** (see cited note, p. 5);
- ***“the bulletins used previously did not, in fact, refer to the [claimant] (who would later resign from 2 EMME.CI in May 2020) but were updated just before the sudden and unexpected resignation of the worker. For this reason [...] it may have happened that they were erroneously used after the termination of the employment relationship with them”** (see cited note, p. 5);
- ***“2 EMME.CI did not possess the certificate related to the basic course for the operation of mobile elevating platforms held in 2009, which expired over a decade ago and was conducted by the worker when they were employed by another company, ALI-CAR SERVICE s.r.l. [...] 2 EMME.CI acquired the business branch of ALI-CAR SERVICE s.r.l. by deed of transfer dated April 26, 2018. It therefore did succeed to the previous relationships of the transferring company, but could not possess a certificate that had already expired before the transfer of the business branch (being of four-year duration) and,** presumably, no longer possessed by ALI-CAR SERVICE s.r.l.” (see cited note, p. 6).

On May 12, 2023, the claimant sent a supplement to the complaint containing a copy of a page from the Company's receipt book, related to an order dated March 9, 2023 (the page is filled out in the section regarding the description of the intervention but the box related to the date is not populated).

On August 6, 2023, he sent his counterarguments.

Regarding the complaint filed by Mr. XX, on October 6, 2022, the Company, following an information request dated August 8, 2022, provided its response and at that time stated that:

- “the [claimant] worked for 2 EMME.CI as a maintenance worker from March 1, 2005, until May 22, 2020, the date on which his resignation submitted on May 13, 2020, took effect” (see note 6.10.2022 cited, p. 2);
- “upon termination of the employment relationship, 2 EMME.CI [...] contested a series of unfair

competition behaviors carried out by the worker to the detriment of the company” (see cited note, p. 3);

- “the dispute regarding the contested violations and the alleged compensation claim was settled by the parties through a settlement agreement signed on August 6, 2020, no. 166, before the Territorial Labor Inspectorate of Udine-Pordenone, Udine office” (see cited note, p. 3);
- “during the conciliation, the parties declared the definitive extinction of any pending matter arising during the employment relationship or related to it, mutually waiving any action and expressly attributing to the settlement agreement the nature of a general transaction” (see cited note, p. 4);
- “the company 2 EMME.CI no longer processes the personal data of the [claimant]. Moreover, [...] the parties, with the settlement agreement [...] definitively regulated every issue, without exception, related to the employment relationship (points 6 and 7 of the agreement), including therefore the data processed in relation to it” (see cited note, p. 4);
- “regarding the corporate email account related to the [claimant], it should be noted that it was deleted on December 28, 2020” (see cited note, p. 4);
- “the company therefore proceeded with the deletion, providing feedback through [its lawyer], as soon as it received the relevant request forwarded by the lawyer [of the claimant]” (see cited note, p. 4);
- “the [claimant] was the only person to have access to the corporate account [subject of the complaint], as access was protected by a password that was always solely in the possession of the worker” (see cited note, p. 4, 5);
- “the employer company never had the opportunity to access the email of the corporate account of the [claimant], neither during the period when he was an employee of the company, nor, even less, in the period following the termination of the employment relationship” (see cited note, p. 5);
- “considering the sudden and unforeseen resignation of the worker, it may have happened that while waiting to receive the new strictly prepared receipt books without any reference to the former employee, some of the old receipt books were used after the termination of the employment relationship with the [claimant]” (see cited note, p. 5);
- “when on December 28, 2020, through communication from the lawyer [of the claimant], the presence of receipt books containing the old reference to the claimant was reported to the undersigned defender, the company promptly proceeded to eliminate the remaining old receipt books” (see cited note, p. 6);
- “the Company 2 EMME.CI does not possess the certificate related to participation in the basic course for operating elevating platforms held in 2009 by the [claimant] and requested by the claimant from the company through his lawyer only in April 2021. [...] the company 2 EMME.CI SERVICE s.r.l. was established on February 2, 2018 [...] the participation in the course referred to by the [claimant] occurred when he was employed by another company, ALI-CAR SERVICE s.r.l.” (see cited note, p. 6);
- “2 EMME.CI has provided the certificate of participation in the course for elevating platforms held in 2018, which constituted an update of the course held in 2009, while the previous version, lacking validity and unusable, is not available to either the Company or the provider, as the certificate in question has expired, being of four-year duration” (see cited note, p. 6, 7);
- “the company immediately responded to the request of the [claimant] regarding the certificates of participation in training courses, transmitting, on the same day of the request, all the certificates in the possession of 2 EMME.CI” (see cited note, p. 7);
- “the company 2 EMME.CI, through [its legal representative], had already responded to the request for access pursuant to Article 15 of the Regulation regarding all attendance certificates of the [claimant] on August 26 and September 7, 2020” (see cited note, p. 8);
- “the company 2 EMME.CI SERVICE s.r.l. has always committed to collaborating with the [claimant] to correctly manage the aspects related to the termination of the employment relationship with him, promptly responding to the requests made by him” (see cited note, p. 8).

On April 3, 2023, the claimant sent the

****Counterarguments.**** On May 11, 2023, the Company, following a further request for information dated April 14, 2023, highlighted that:

- “the email account [subject of the complaint] does not properly constitute a ‘business account,’ even though, for mere clarity of exposition, previous writings referred to the same account in these terms, having been so designated in the complaint filed by [the complainant] through the lawyer” (see note

dated May 11, 2023, p. 2);

- "this email address was neither provided nor created by 2 EMME.CI, but was rather activated by the complainant's colleague, [the other complainant], who created two accounts - for himself and for the colleague - while they were employed by the Company, along with the corresponding password for registration and access, without communicating it to the company" (see note cited, p. 2);
- "the employer company never had access to the emails contained therein, as this account was password-protected and only accessible to the worker, neither during the period in which the complainant was employed by the Company, nor, even less, in the period following the termination of the employment relationship" (see note cited, p. 2);
- "the address was not used for the Company's official communications, which instead utilized the different addresses XX and [the one assigned to the managing partner], as also evidenced by the company bulletins that reported these email accounts, without making any reference to the account [subject of the complaint] [...] the former employee could have deleted it at any time" (see note cited, p. 2, 3);
- "only following the request for deletion of the account [subject of the complaint] submitted by the lawyer [of the complainant] did the Company remember the existence of the account itself and, having noted that it was evidently still active, took steps to proceed with its deletion" (see note cited, p. 3);
- "during the period between the termination of the employment relationship and the conciliation that took place before the Territorial Labor Inspectorate of Udine-Pordenone, that is from May 22, 2020, until August 6, 2020, the parties were in contact with each other, through their respective lawyers, in order to reach an agreement to resolve any disputes and/or pending matters that arose during the employment relationship and that during this period no request was made to 2 EMME.CI regarding the deletion of the aforementioned account. [...] the request actually arrived only after the signing of the conciliatory agreement, and 2 EMME.CI responded immediately" (see note cited, p. 3);
- "company bulletins containing the reference to the surname of [the complainant] were not prepared after the termination of his employment with the Company, but were ordered and delivered to the Company by the supplier when [the complainant] was still employed by 2 EMME.CI" (see note cited, p. 5);
- "2 EMME.CI had no obligation to inform the former employee of the reasons for the failure to provide a document of which it was not in possession and, therefore, of data that it did not process" (see note cited, p. 7);
- "2 EMME.CI has, among other things, promptly provided the certificate of participation in the course for elevating platforms held in 2018 and thus still valid" (see note cited, p. 7).

On May 12, 2023, the complainant sent an integration to the complaint containing a copy of the page of a company bulletin related to an order dated March 9, 2023 (the page is filled out in the section related to the description of the intervention with reference to an order of 9.3.2023, but the box referring to the date is not populated). On August 6, 2023, he sent his counterarguments.

****2. Opening of the procedure.**** On September 1, 2023, the Office, having evaluated all the elements acquired during the investigation, following the consolidation of the proceedings related to the two complaints, notified the Company of the alleged violations of the Regulation identified, with reference to Articles 5, paragraph 1, letter a), 6, 12, 15, and 17 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

On October 2, 2023, the Company submitted its defense writings in which it stated that:

- "it deals with maintenance, assistance, repair, and buying and selling of forklifts, overhead cranes, and lifting equipment both inside and outside the premises of companies, and it has a total of four employees, the managing partner [...], the partner and employee [...] and two other subordinate workers" (see note dated October 2, 2023, p. 2);
- "the share capital amounts to 10,000.00 euros" (see note cited, p. 2);
- "the complained company therefore falls within the category of micro-enterprises, does not process data on a large scale, and is therefore exempt from the obligation of various compliance requirements, including the appointment of a Data Protection Officer and the data protection impact assessment"

(see note cited, p. 2);

- "the few data processed by 2 EMME.CI fall within the so-called common data" (see note cited, p. 2);
- "neither sensitive data nor any other type of data that by their nature may be at greater risk in the event of a breach and that, due to their sensitivity, are subject to special legal treatment are processed" (see note cited, p. 2, 3);

- "using as a reference the parameters of risk anticipated by ENISA [...] for cases of data breach, the possible violations of personal data processed by 2 EMME.CI can, at most, fall into the category of "low risk" (see cited note, p. 3);

- "the personal data of the claimants contained in the company bulletins consisted of the initials of their names [...], their surnames (as well as their company phone numbers, deactivated at the time of termination of the employment relationship)"; (see cited note, p. 3);

- "the access request was never made by the claimants directly to the Data Controller and, in any case, referred to a certificate related to a course whose validity had expired over a decade ago, which rendered the request manifestly unfounded" (see cited note, p. 4);

- "none of the aforementioned violations of the personal data of the claimants can cause any harm to the former employees" (see cited note, p. 4);

- "the company 2 EMME.CI has always shown cooperation towards the Data Protection Authority, making itself available to it and providing all the information and clarifications requested" (see cited note, p. 4);

- "the company 2 EMME.CI has never been convicted for violations related to the processing of personal data, nor have there been complaints regarding non-compliance with the processing of the same, apart from those made by the [claimants]" (see cited note, p. 4);

- "the [...] defender [of the Company] has always communicated to the claimants, through [their lawyer], all the information of which he was aware and provided all the documentation in the company's possession" (see cited note, p. 5);

- "the subjects involved, whose data is being discussed, are only the [claimants] and the subjects who may have come to know the data – specifically the initials of the name and surname of the claimants, although no longer part of the workforce – are only a few clients of the company, who, moreover, were already aware of the data of the former employees, as the latter had maintained relationships with them during their employment with the complained company" (see cited note, p. 5);

- "regarding the intentional or negligent nature of the violation, it is noted that the use of old bulletins by the company is the result of a mere oversight on its part in verifying that all bulletins in use were replaced with the new ones in circulation and that the old ones were definitively eliminated. Therefore, it cannot be considered that the contested conduct could have assumed an intentional character and, rather, it demonstrates, at most, mere negligence on the part of 2 EMME.CI" (see cited note, p. 6);

- "the company, in order to avoid a repetition of the conduct deemed harmful, has equipped itself with new bulletins [...], in which [...] there is no longer any reference to the [claimants] and the contacts indicated therein are those of the partner [...] and the other employees of 2 EMME.CI" (see cited note, p. 6);

- "it is excluded that the contested conduct could be repeated in the future" (see cited note, p. 6);

- "the request was rather transmitted by the lawyer [of the claimants] to the [...] defender [of the Company], within the framework of correspondence related to another dispute that arose between the parties (concerning the unfair competition actions carried out by the former employees). In this communication, it was highlighted that the clients of the same had, unsuccessfully, turned to CAF CISL FVG to obtain the certificates related to the basic course for operating mobile elevating platforms (held by the [claimants] in 2009). It therefore addressed the company's defender to obtain the aforementioned documents, assuming, without any basis, that 2 EMME.CI was in possession of the certificates in question" (see cited note, p. 7);

- "Article 12 of the Regulation [...] indeed provides that if the requests of the data subject are manifestly unfounded or excessive, the Data Controller may, among other things, refuse to satisfy the request. Moreover, in the communication received, the lawyer [of the claimants] did not specify in any way that it was being made as a request for access pursuant to Article 15 of the Regulation" (see cited note, p. 7);

- "although the Regulation [...] does not establish specific formal requirements, it is at least appropriate that the request be made using the most appropriate communication channels and be formulated in a clear and understandable manner also for the subject receiving the request, so that they can perceive its nature" (see cited note, p. 8);

- "[the] defender [of the Company] and the lawyer [of the claimants] were in frequent telephone contact during that period for the resolution of the pending dispute between the parties regarding the acts of unfair competition carried out by the claimants to the detriment of the company, and it had already been pointed out in that context the unfounded nature of such claims" (see cited note, p. 8);

- "2 EMME.CI had promptly delivered both the certificates of participation in the course for elevating platforms held in 2018 and currently valid, as well as any other certification in the company's possession regarding the [claimants]. This circumstance undoubtedly demonstrates the good faith of the complained company which, despite everything, has made available to the claimants what it had in its possession" (see cited note, p. 9).

3. The outcome of the investigation.

3.1. Established facts and observations on the regulations regarding personal data protection.

Whereas, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code "Falsehoods in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority." Based on the elements acquired during the investigative activity as well as the subsequent assessments of this Department, it has been established that the Company, as the data controller, has engaged in conduct that is not compliant with the regulations on data protection concerning the processing of the claimants' data within its own records following the termination of the employment relationship and has not provided an adequate response to the requests for the exercise of rights submitted by the claimants.

In this regard, it is noted that according to data protection regulations, it is necessary for the processing of personal data to be carried out in compliance with the general principles set out in Article 5 of the Regulation. In accordance with the principle of lawfulness of processing, so-called common personal data may be processed in the presence of an appropriate lawful basis among those indicated in Article 6 of the Regulation. Article 12 of the Regulation, to be read in conjunction with the provisions relating to the specific rights recognized by the legal system to the data subject, states that "the data controller shall take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 and the communications referred to in Articles 15 to 22 and Article 34 regarding the processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language [...]. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. If requested by the data subject, the information may be provided orally, provided that the identity of the data subject is verified by other means" (par. 1).

It is also provided that "the data controller facilitates the exercise of the rights of the data subject pursuant to Articles 15 to 22" (par. 2). Paragraph 3 of the same article specifies that "the data controller provides the data subject with information regarding the action taken concerning a request under Articles 15 to 22 without undue delay and, in any case, no later than one month from the receipt of the request. This period may be extended by two months, if necessary, taking into account the complexity and number of requests. The data controller informs the data subject of such extension and the reasons for the delay within one month of receiving the request. If the data subject submits the request by electronic means, the information shall be provided, where possible, by electronic means, unless otherwise indicated by the data subject."

According to paragraph 4 of the same article, the data controller, if it does not comply with the request of the data subject, "informs the data subject without delay, and at the latest within one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy."

According to Article 15 of the Regulation, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if so, to obtain access to the personal data" and to a series of information indicated in the same article (par. 1). Furthermore, according to par. 3 of the same article, "the data controller provides a copy of the personal data undergoing processing. [...] If the data subject submits the request by electronic means, and unless otherwise indicated by the data subject, the information shall be provided in a commonly used electronic format" (par. 3).

Article 17 of the Regulation states that "the data subject has the right to obtain from the data controller the erasure of personal data concerning him or her without undue delay, and the data controller has the obligation to erase without undue delay the personal data, if one of the reasons [indicated in the same article] applies."

3.2. Established violations.

Based on the elements acquired during the investigative activity as well as the subsequent assessments of this Department, it has been established that the Company has engaged in conduct contrary to the data protection regulations concerning the two claimants.

It is first recalled that the power of verification attributed to the Authority is not dependent on the initiative of the parties; Article 57 of the Regulation, among the multiple tasks recognized to the supervisory authorities in the field of personal data protection, indicates, in addition to the handling of complaints submitted by a data subject (see Article 57 par. 1 lett. f) of the Regulation), also the task of monitoring and ensuring the application of the Regulation (see Article 57 par. 1 lett. a) of the Regulation).

In this regard, internal regulation no. 1 of 2019 (concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority for the protection of personal data) specifies in Article 21 ("Controls and measures adopted without a party's request") that "In the exercise of control tasks...

or otherwise exercisable by the Guarantor, having assessed the elements in its possession and even in the absence of a complaint, report, or notification of a violation of personal data, the Authority may initiate an ex officio preliminary investigation to verify the existence of suitable elements regarding possible violations of the relevant regulations on personal data protection."

Also preliminarily, given what the Company stated regarding the settlement reached between the parties before the Labor Inspectorate, reference is made to what is provided for in Article 2113 of the Civil Code ("Waivers and settlements that concern rights of the employee arising from mandatory provisions of law and collective agreements concerning the relationships referred to in Article 409 of the Code of Civil Procedure are not valid") and it is emphasized, in any case, that the facts complained of in the complaint occurred after, or continued even after, the aforementioned settlement between the parties on August 6, 2020. In this regard, the Company's assertions regarding the settlement have no relevance concerning the subject matter of the complaints submitted to the Authority.

3.2.1. Processing of the complainants' data in the header of the invoices.

The conduct of the Company is not compliant with data protection regulations, particularly as the Company continued to process the complainants' data (initial of the name and full surname) within its invoices - specifically in the header of these invoices, within the contact details of the Company's technicians to be contacted - even after the termination of the employment relationship (which occurred on May 30, 2020, for one of the two complainants and on May 22, 2020, for the other).

This occurred in the absence of an appropriate legal basis, thus violating Article 6 of the Regulation, given that the processed data falls under the so-called common data, an article that constitutes a direct

corollary of the principle of lawfulness of processing stated in Article 5, paragraph 1, letter a) of the Regulation. Regarding the conditions for the lawfulness of processing, it is recalled that, within the employment relationship, the employer generally carries out the necessary processing for the execution of the employment contract and to fulfill the obligations arising from sector labor regulations (see Article 6, paragraph 1, letters b) and c) of the Regulation).

None of the aforementioned conditions can be considered as the basis for the processing of the complainants' data carried out by the Company in the header of the invoices after the termination of the employment relationship. In relation to the aforementioned conduct, it is also noted that the Company did not act in accordance with what is provided for in Articles 12 and 17 of the Regulation, as well as the principle of fairness (Article 5, paragraph 1, letter a) of the Regulation): in response to the deletion request submitted by the complainants (on December 28, 2020), the Company, in fact, although it communicated to them, through its lawyer (on December 30, 2020), that "it is true that entirely inadvertently my client has continued to use old invoices printed in December 2019 containing the data you highlighted [...]; [...] these are old invoices and not new invoices that obviously will no longer be used. The old invoices will be immediately eliminated," instead continued to use, subsequent to this feedback, invoices containing the personal data (initial of the name and full surname) of the complainants, as emerges from the documentation on file (including invoices dated December 14, 2020, December 15, 2020, July 13, 2021, November 29, 2021, December 17, 2021; furthermore, an invoice with the header in question appears to have been filled out, although not in the date box, related to an order dated March 9, 2023).

3.2.2. Right of access to data.

The conduct that the Company has maintained regarding the request to exercise the right of access to data submitted by the complainants is also contrary to data protection regulations. In particular, it has been established that the Company did not provide an appropriate response to the request for access to the certificates of the basic course for operating mobile elevating platforms (PLE) made by the complainants on April 28, 2021, and reiterated on May 8, 2021.

The conduct of the Company, considering, among other things, Article 2112 of the Civil Code ("Maintenance of workers' rights in the event of a transfer of business"), is in contrast with what is provided for in Articles 12 and 15 of the Regulation: according to Article 12, paragraph 4 of the Regulation, the data controller, if it believes it cannot satisfy the request to exercise the rights presented by the data subject (including the right of access under Article 15 of the Regulation), is obliged to communicate to the requester without delay and, at the latest, within one month of receiving the request "the reasons for the non-compliance and [the] possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy."

In this case, in fact, although the Company, based on its own statements, was not in possession of the requested document, considering also that, according to its own statements, the aforementioned certificate had expired more than a decade ago, it should have responded to the complainants' request, albeit limiting itself to communicating the reasons for the denial as well as the possibility of lodging a complaint with the Guarantor for the protection of personal data or seeking recourse to the ordinary judicial authority. This in accordance with what is required by Article 12 of the Regulation also with reference to the requests under Article 15 of the Regulation. Instead, it does not appear that... the bar) [...]).

The Company has not provided any type of response, nor has it expressed its denial, regarding the request of April 28, 2021, reiterated on May 8, 2021. The responses provided by the Company to the claimants on August 26, 2020, and September 7, 2020, are, in fact, prior to the requests of April 28 and May 8, 2021, and in them, there is no indication regarding the impossibility, with reasons stated, of delivering to the claimants the certificates for the basic course on the operation of mobile elevating work platforms.

Furthermore, the Company's argument that it was not obliged to respond to the request for the exercise of the right of access because it was presented to the Company's own lawyer cannot be

accepted. This is because the request was not sent to any third party, but to the lawyer of the Company with whom the claimants' lawyer, according to the Company's own statements – a circumstance confirmed by the documentation on file – was in contact to resolve various issues related to the relationship between the Company and the claimants following the termination of the employment relationship.

In fact, it is the same lawyer of the Company who, regarding the requests of August 25, 2020, and August 7, 2020, submitted by the claimants' lawyer, provided responses on August 26 and September 7, 2020. It should also be emphasized that the Regulation does not impose any requirements on the interested parties regarding the format of the request for access to personal data.

In this regard, the Guidelines 01/2022 on data subject rights – Right of access, EDPB, March 28, 2023, have clarified that there is no obligation on the interested parties to adopt a specific format to submit requests for the exercise of the right of access (see Guidelines 01/2022 cited, point 52 “the GDPR does not impose any requirements on data subjects regarding the form of the request for access to the personal data. Therefore, there are, in principle, no requirements under the GDPR that the data subjects must observe when choosing a communication channel through which they enter into contact with the controller”, unofficial translation “the General Data Protection Regulation does not impose any requirements on data subjects regarding the format of the request for access to personal data. Therefore, in principle, there are no requirements that the data subject must comply with when choosing a communication channel through which to contact the data controller”).

The aforementioned Guidelines also provide that the access request may be submitted by a third party and specify that it is up to the data controller to verify the identity of the third party acting on behalf of the data subject and their authorization. For this purpose, the cited Guidelines refer to national laws regarding legal representation (see Guidelines 01/2022 cited, point 80 “Although the right of access is generally exercised by the data subjects as it pertains to them, it is possible for a third party to make a request on behalf of the data subject. [...] This may apply to, among others, acting through a proxy or legal guardians on behalf of minors, as well as acting through other entities via online portals. In some circumstances, the identity of the person authorised to exercise the right of access as well as authorisation to act on behalf of the data subject may require verification, where it is suitable and proportionate”, unofficial translation “Although the right of access is generally exercised by the data subject as it pertains to them, a third party may make a request on behalf of the data subject. This may occur, among other things, through a representative or legal guardian on behalf of minors, as well as through other entities via online portals. In such situations, the identity of the person authorized to exercise the right of access and the authorization to act on behalf of the data subject may require verification, where it is suitable and proportionate”; point 81 “In doing so, national laws governing legal representation (e.g. powers of attorney), which may impose specific requirements for demonstrating authorisation to make a request on behalf of the data subject, should be taken into account [...]. In accordance with the principle of accountability, as well as of the other data protection principles, controllers shall be able to demonstrate the existence of the relevant authorisation to make a request on behalf of the data subject, and to receive the requested information, except if national law differs (e.g. national law contains specific rules regarding the trustworthiness of lawyers) leaving the controller to verify the identity of the proxy (e.g. in the case of lawyers checking enrolment at the bar) [...]”, unofficial translation “For this purpose, national laws governing legal representation (e.g. powers of attorney) should be taken into account, which may impose specific requirements for demonstrating authorization to make a request on behalf of the data subject [...]. In accordance with the principle of accountability and other data protection principles, data controllers must be able to demonstrate the existence of the relevant authorization to make a request on behalf of the data subject, unless national law provides otherwise (e.g. specific rules regarding the trustworthiness of lawyers), leaving the data controller with the sole obligation to verify the identity of the proxy (e.g. in the case of lawyers, verifying enrollment at the bar) [...]”).

The request from the complainants was also clear in its content, even though there was no explicit

reference to Article 15 of the Regulation. In this regard, the cited Guidelines 01/2022 on data subject rights – Right of access specify that it is not necessary for the request to exercise the right of access to contain a reference to Article 15 of the Regulation if the content is nonetheless clear (point 50 “It should be noted that the GDPR does not introduce any formal requirements for persons requesting access to data. In order to make the access request, it is sufficient for the requesting persons to specify that they want to know what personal data concerning them the controller processes. Therefore, the controller cannot refuse to provide the data by referring to the lack of indication of the legal basis of the request, especially to the lack of a specific reference to the right of access or to the GDPR [...]”, unofficial translation “It should be noted that the General Data Protection Regulation does not introduce any formal requirements for persons requesting access to data. In order to submit the access request, it is sufficient for the requesting person to specify that they wish to know what personal data concerning them is processed by the controller. Therefore, the data controller cannot refuse to provide the data by referring to the lack of indication of the legal basis, particularly the lack of a specific reference to the right of access or to the GDPR [...]”).

Furthermore, the additional point raised by the Company, claiming that the requested certificates had expired, does not justify the absence of a response from the data controller, who, as previously argued, could (legitimately) have limited themselves to explaining their inability to comply with the request by informing the interested parties of their right, recognized by the legal system, to appeal to the ordinary judicial authority or to file a complaint with the Authority.

Moreover, it is recalled that the orientation of the case law, consistently reiterated by the Authority, holds that the subjective legal position of the worker to access their personal file constitutes a protectable subjective right as such, which derives from the employment relationship. According to the judges of legitimacy, in fact, this right derives, in addition to the regulations on personal data protection, from the “respect for the principles of good faith and fairness that burden the parties in the employment relationship pursuant to Articles 1175 and 1375 of the Civil Code, as confirmed by the fact that, for some time, collective bargaining in the relevant sector has provided that the employer must retain, in a specific personal file, all acts and documents, produced by the entity or by the employee themselves, that pertain to the professional path, the activities carried out, and the most significant facts concerning them, and that the employee has the right to freely view the acts and documents included in their personal file” (Court of Cassation, April 7, 2016, No. 6775).

The right of access, moreover, “cannot be understood, in a restrictive sense, as the mere right to know any new and additional data compared to those already in the knowledge and, therefore, in the possession of the same data subject regarding the processing of their data, since the purpose of the [right] is to guarantee, in protection of the dignity and privacy of the data subject, the verification *ratione temporis* of the occurrence of the insertion, the permanence or the removal of data, regardless of the fact that such events had already been brought to the attention of the data subject through other means, verification carried out through access to the data collected about oneself at any and all moments of one’s relational life” (Court of Cassation, December 14, 2018, No. 32533).

For all the reasons stated, the Company violated Articles 12 and 15 of the Regulation.

Finally, with regard to the complained conduct concerning email accounts, it is believed that no evidence of a violation of data protection regulations has emerged, therefore there are no grounds for the Authority to take action, and it is therefore ordered to archive the complaints concerning the aforementioned profile, pursuant to Articles 140-bis, 142, 143 of the Code, and Articles 8, 9, 11 paragraph 1 of the internal regulation No. 1 of 2019.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

For the aforementioned reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Authority’s Regulation No. 1/2019 apply.

The conduct carried out by the Company, which consisted of continuing to process the complainants’ data in the headings of company invoices following the termination of the employment relationship,

even after the specific request for deletion made by the interested parties and despite the reassurances provided by the Company, as well as failing to provide any response to the access request submitted by the complainants on April 28, 2021, and reiterated on May 8, 2021, is indeed unlawful, as stated above, in relation to Articles 5, paragraph 1 letter a), 6, 12, 15, and 17 of the Regulation.

The violation, established in the terms outlined in the reasoning, cannot be considered "minor," taking into account the nature, severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (cons. 148 of the Regulation).

Therefore, in light of the corrective powers attributed by Article 58, paragraph 2 of the Regulation, in view of the specific case, an administrative monetary sanction is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

In this context, considering, in any case, that the conduct has exhausted its effects, given that the Company has stated that it has adopted new bulletins devoid of the claimants' data and that during the proceedings it declared that it does not possess the certificates of participation in the basic course for the operation of mobile elevating work platforms (PLE), the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation are not met.

5. Adoption of the injunction order for the application of the administrative monetary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code). The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative monetary sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case]" by adopting an injunction order (Article 18, Law 24.11.1981, No. 689) and, in this context, "the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

In this case, the Company has engaged in two distinct conducts, which must be considered separately for the purpose of quantifying the administrative sanction to be applied. Therefore, with reference to each of the aforementioned conducts, the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

Taking into account that the observations referred to in paragraphs 3.2.1 and 3.2.2, concerning the processing of data in corporate bulletins and the exercise of the right of access, pertain to different violations that occurred as a result of a single conduct (the same processing or related processes), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative monetary sanction and its quantification, considering that the sanction must "in each individual case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) in relation to the nature, severity, and duration of the violation, the nature of the violation concerning the principle of lawfulness of processing and the principle of fairness as well as the exercise of the rights of the data subject has been considered; the prolonged duration of the violation has also been taken into account;

b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, the conduct has been taken into consideration, which in one case consisted of the use of bulletins containing data relating to the claimants even after the termination of the employment relationship and despite the response provided to the cancellation request, and in the other case, in failing to respond to the request to exercise the right of access;

c) there are no previous relevant violations committed by the data controller or previous measures referred to in Article 58 of the Regulation.

It is also believed that the economic conditions of the offender, determined based on the revenues achieved by the Company with reference to the abbreviated financial statements for the year 2021, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation). Lastly, the amount of sanctions imposed in similar cases is taken into account.

In light of the above elements and the assessments made, it is deemed appropriate, in this case, to apply the administrative sanction of payment of an amount equal to 1,000 euros (one thousand), for each of the violations referred to in the previous paragraphs 3.2.1 and 3.2.2, for a total amount of 2,000 euros (two thousand).

In this context, it is also deemed appropriate, considering the nature of the established violations that concerned the general principles of processing and the exercise of the rights of the data subject, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, the publication of this provision on the Authority's website should proceed.

It is also believed that the prerequisites referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

notes the illegality of the processing carried out by 2 Emme.ci Service s.r.l., with registered office at Viale Duodo, 44, Udine, VAT number 02916510304, pursuant to Article 143 of the Code, for the violation of Articles 5, letter a), 6, 12, 15, and 17 of the Regulation;
ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, 2 Emme.ci Service s.r.l., to pay the amount of euro 2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

2 Emme.ci Service s.r.l. to pay the aforementioned amount of euro 2,000.00 (two thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction, within the term provided for in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, for the filing of the appeal as indicated below (Article 166, paragraph 8, of the Code);

DECIDES

the publication of this provision on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/20129, and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as

Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be brought before the ordinary judicial authority, with an application filed with the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, January 24, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei